STANDARD OPERATING PROCEDURE			I-4200
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/15/08	DATE REVISED **03/14/23**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		

CHAPTER TITLE	RESOURCES
CRIMINAL INVESTIGATIONS	NRS 28-707 THROUGH 28-739 SARPY COUNTY CHILD ABUSE AND NEGLECT RESPONSE TEAM PROTOCOL
SUBJECT CHILD ABUSE INVESTIGATIONS	CROSS REFERENCE P-4500 CHILD ABUSE/NEGLECT P-4810 CRIME SCENE I-4100 SEXUAL ASSAULT INVESTIGATIONS

I. Purpose:

The purpose of this policy is to establish the procedures for completing child abuse and neglect investigations when assigned to the Investigations Division.

II. Policy:

Generally, the Sarpy County Road Patrol will be responsible for the initial investigation of child abuse and neglect crimes. When it is determined that a child abuse/neglect crime (including sexual assault on a child) has occurred the Investigations Division shall be notified and may be assigned responsibility for the completion of the investigation including all medical procedures.

III. Procedure:

A. Investigative Responsibility: The Investigations Division shall generally coordinate all child abuse and neglect investigations with Health and Human Services (HHS).

1. The Sheriff's Office and HHS shall cooperate on investigations to ensure the safety and well-being of children. Cases requiring immediate action shall include, but are not limited to:

a) Cases of sexual assault or sexual abuse of children by a household member.
b) Cases of physical abuse committed by a household member.
c) Cases of abuse or neglect occurring in schools, day care homes, day care centers, or institutions.
d) Cases of abuse or neglect occurring in foster care homes, or allegedly perpetrated by foster care providers.

e) Cases of medical neglect.
f) Cases of serious environmental neglect; lack of food, unsanitary living conditions, lack of heat, water, or other essential utilities.
g) Cases involving the suspicious death of a child and there are other children living in the home.

2. The Sheriff's Office shall assume primary responsibility for investigating the following types of cases:

a) Physical or sexual abuse of children by persons other than household member, caregiver, or non-custodial parent.
b) Cases of children being left unattended or without proper supervision.
c) Cases in which children are present when incidents of domestic violence occur, either when the children are directly involved or are placed at risk by the violence.
d) Minor environmental neglect.
e) Cases involving the suspicious death of a child and there are no other children in the home.

3. HHS shall assume the primary responsibility for the following cases and may request assistance from law enforcement.

a) Cases of educational neglect where there is no concern of immediate harm.
b) Cases of emotional abuse or neglect.
c) Cases where there is chronic failure of the parent or caretaker to meet the child's basic needs, when no immediate risk of harm exists.

B. **Child Abuse/Neglect Investigations:** After an initial investigation is conducted by the Road Patrol Division (unless the case is originally assigned to the Investigations Division), the assigned investigator shall ensure a thorough investigation is completed. This may include collaboration with HHS.

1. The Sheriff's Office may obtain assistance from HHS in the following circumstances:

a) When specialized skills in interviewing children are needed, and are not available through Project Harmony.
b) When advice is needed concerning the removal of children.
c) When children have been taken into temporary custody and placement is needed.
d) When children are taken into temporary custody and need medical care or examination.

2. Forensic Interviews: Generally, the Sarpy County Sheriff's Office shall utilize Project Harmony to assist with interviews of children. It is the

responsibility of the assigned investigator to schedule interviews with Project Harmony. It is strongly recommended that videotaped forensics interviews be utilized for children who are under the age of eighteen (18), who are alleging or facts indicate any of the following:

a) Sexual abuse (see I-4100 Sexual Assault Investigations).
b) Serious physical abuse or neglect.
c) Child is a witness to a violent crime.
d) Child has been removed from a clandestine drug lab.
e) Child has been recovered from a kidnapping.

3. Victim interviews may be conducted without parental notification or consent when necessary to protect the integrity of the investigation. When such interviews are conducted, investigators should arrange for parents to be notified as soon as practical, so long as doing so will not jeopardize the investigation.

4. Generally, in the case of physical abuse, all children in the household should be interviewed to determine if they have been victimized.

5. In the case of sexual abuse, the investigating deputy shall attempt to determine if any other children have been victimized. This may include interviewing other children depending upon their development and verbal skills.

C. **Removal of Children:** Deputies are empowered by Nebraska statutes to take children into their temporary custody when there are reasonable grounds to believe that the child is seriously endangered in his or her surroundings (see P-4500 Child Abuse/Neglect). Children should only be removed from a home when lesser measures are insufficient to protect them. The following cases present circumstances where deputies should consider the removal of children:

1. Physical abuse has occurred which resulted in or could have resulted in serious injury.
2. The child has been systematically tortured or inhumanely punished.
3. The parents' reckless disregard for the child's safety resulted in or could have resulted in serious injury.
4. The physical condition of the home is so dangerous that it poses an immediate threat of serious harm to the child.
5. The child has been sexually abused or exploited by the parent.
6. The parents have purposefully or systematically withheld essential food or nourishment from the child.
7. The parents refusal to obtain or to consent to medical or psychiatric care for the child that is needed immediately to prevent or treat a serious injury or illness.

8. The parents appear to be suffering from mental illness, intellectual disability, drug abuse, or alcohol abuse so severe that they cannot provide for the child's basic needs.
9. The parents have abandoned the child.
10. There is reason to suspect the parents may flee with the child.
11. There is specific evidence that the parents' anger or discomfort about the report and the investigation will result in retaliation against the child.
12. Both parents have been arrested. In the case of an arrest of one of the parents for felony possession, sale or manufacture of drugs, Deputies should detain the children.
13. Children who are found at the scene of a methamphetamine lab should be taken into protective custody. Emergency medical service should be called immediately to evaluate and/or transport children to medical care when urgent health concerns and/or evident contamination of the child are present.